



Province of Alberta

PERSONS WITH DEVELOPMENTAL
DISABILITIES SERVICES ACT

**DEVELOPMENTAL
DISABILITIES REGULATION**

Alberta Regulation 230/2013

With amendments up to and including Alberta Regulation 162/2024

Current as of September 26, 2024

Office Consolidation

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(Consolidated up to 162/2024)

ALBERTA REGULATION 230/2013

Persons with Developmental Disabilities Services Act DEVELOPMENTAL DISABILITIES REGULATION

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Definitions

1 In this Regulation, “Act” means the *Persons with Developmental Disabilities Services Act*.

Developmental disability

2 This Regulation describes a significant limitation in intellectual capacity and a significant limitation in adaptive skills for the purpose of section 1(1)(c)(ii) of the Act.

Intellectual capacity

3(1) In the case of a service applied for on or after August 1, 2009, a significant limitation in intellectual capacity is an intellectual capacity that

- (a) on a full-scale score is 2 standard deviations or more below the mean for a standardized intellectual assessment, or
- (b) is so diminished the individual is unable to complete a standardized intellectual assessment

as determined in accordance with the Developmental Disabilities Guidelines published by the Minister as amended from time to time.

(2) In the case of a service applied for prior to August 1, 2009, a significant limitation in intellectual capacity is a below average intellectual functioning compared to a peer without a disability that

significantly affects the ability to learn and perform daily living skills.

Adaptive skills

4(1) In the case of a service applied for on or after August 1, 2009, a significant limitation in adaptive skills is the inability to perform 6 or more adaptive skills

- (a) without the assistance of another person, and
- (b) at a level comparable to a peer without a disability

as determined in accordance with the Developmental Disabilities Guidelines published by the Minister as amended from time to time.

(2) In the case of a service applied for prior to August 1, 2009, a significant limitation in adaptive skills is a significant limitation in at least 2 of the following adaptive skill areas:

- (a) communication;
- (b) home living;
- (c) community use;
- (d) health and safety;
- (e) leisure;
- (f) self-care;
- (g) social skills;
- (h) self-direction;
- (i) functional academics;
- (j) work.

Expiry

5 For the purpose of ensuring that this Regulation is reviewed for ongoing relevancy and necessity, with the option that it may be repassed in its present or an amended form following a review, this Regulation expires on September 30, 2029.

AR 230/2013 s5;26/2018;116/2019;145/2021;162/2024

Coming into force

6 This Regulation comes into force on January 1, 2014.



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